



CITY EXPERIENCE
Planning Office

DATE:
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TO:
Tulsa City Councilors

FROM:
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SM

City Council initiation of zoning code amendments to add definition of a data center and related regulations

On December 20, 2023, City Council adopted an ordinance approving a rezoning to Industrial-Light (IL) for construction of a data center and related uses on a 340 acre property located south and west of the intersection of East 11th Street South and the Creek Turnpike, known as Project Anthem. Earlier this year, the City Council adopted a Tax Incentive District (TID) to support Project Anthem.

During conversations with the Project Anthem team over the past couple of years, they expressed the desire to create a definition for data center in the zoning code to more accurately reflect their unique operations, as well as amend other provisions in the zoning code related to parking and wireless communication facilities. Planning Office and City Legal have worked with the Project Anthem representative to develop a definition and associated regulations that are appropriate to their use and the City of Tulsa Zoning Code.

Project Anthem representative has contacted Councilor Bengel who agreed to sponsor this item for Council consideration of adding these proposed amendments In the City of Tulsa Zoning Code.

If the City Council chooses to initiate the amendments (attached), the Planning Office will draft the amendment to the zoning code and bring it to the TMAPC and City Council for consideration.

Proposal to add a Data Center definition and related regulations

Proposed text in green underlined .

Chapter 35, Section 35.070A:

Section 35.070 Industrial use category.

This category includes uses that produce goods from extracted and raw materials or from recyclable or previously prepared materials, including the design, storage and handling of these products and the materials from which they are produced. The industrial subcategories are:

A. Low-impact manufacturing and industry. Manufacturing and industrial uses that do not, as part of their normal operations, generate noticeable off-site impacts in terms of noise, smoke, particulate matter, odors, or vibration. Typical examples of low-impact manufacturing and industrial uses include: commercial laundries and linen supply services, apparel manufacturing, bakery products manufacturing, production of medical marijuana edibles using medical marijuana components processed elsewhere, bottling plants, ice manufacturing, mattress manufacturing and assembly, microbreweries, micro distilleries, data centers, coffee roasting with a maximum roasting capacity of forty-five (45) kilograms per batch, musical instrument and parts manufacturing, newspaper printing and binderies.

1. **Microbrewery.** An establishment in which beer or malt beverages are made on the premises and then sold or distributed, and which produces less than fifteen thousand (15,000) barrels (four hundred sixty-five thousand (465,000) gallons) of beer and malt beverages per calendar year. Where allowed by law, microbreweries may include tasting rooms and direct sales to consumers in addition to other methods of distribution.

2. **Micro distillery.** A distillery producing distilled spirits in total quantity of no more than forty-thousand (40,000) proof gallons per calendar year. Where allowed by law, micro distilleries may include tasting rooms and direct sales to consumers in addition to other methods of distribution.

3. **Data Center.** A facility or facilities used to house, and in which are operated, maintained and replaced from time to time, computer systems and associated components, including but not limited to telecommunications and storage systems, cooling systems, power supplies and systems for managing electrical and mechanical performance, and equipment used for the transformation, transmission, distribution and management of electricity for on-site uses, internet-related equipment, data communications connections, private communication towers, environmental controls and security devices.

Chapter 55, Section 55.050:

Section 55.050-M Data Centers

1. For data centers up to two hundred thousand (200,000) square feet, minimum parking shall be provided as:

a. Office area: 1 space per 1,000 square feet

b. Warehouse/storage/technology equipment area: 0.18 space per 1,000 square feet.

2. For data centers larger than two hundred thousand (200,000) square feet, minimum parking shall be provided as:

a. Office area: 1 space per 1,000 square feet

b. Warehouse/storage/technology equipment area: 0.15 space per 1,000 square feet.

Chapter 40, Section 40.420

Section 40.420-E General Requirements.

All towers and antennas are subject to the general requirements of this subsection unless otherwise expressly stated.

1. Towers may be considered either principal or accessory uses. Another principal or accessory use on the same lot does not preclude the installation of a tower on that lot.

2. Towers and antennas are subject to all of the following requirements:

a. Towers and antennas must be designed to blend into the surrounding environment through the use of color, galvanizing, or camouflaging architectural treatment, except in instances where the color is dictated by federal or state authorities, such as the Federal Aviation Administration.

b. Except in IL, IM and IH zoning districts, communication towers must be of a monopole design unless the board of adjustment approves, by special exception, an alternative design that they determine would better blend into the surrounding environment or that the required antennas cannot be supported by a monopole.

c. Towers used in conjunction with a Data Center Use shall not exceed 100 feet in height and shall not be located within 200 feet of the property boundary, unless the board of adjustment approves, by special exception, such additional height and/or location.

3. If an antenna is installed on a structure other than a tower, the antenna and supporting electrical and mechanical equipment must be of a color that closely matches or complements the color of the supporting structure, so as to make the antenna and related equipment as visually unobtrusive as possible.